

C.C.R.B CASE CLOSING FORM

Investigator assigned: McEnany		Team: 5	CCRB#: 9802313	☒ Force ☐ Discourtesy ☐ Abuse ☐ O.L. ☐ Injury
Date of incident: 5/22/98	Time of incident: 6:30 PM	Location of incident: § 87(2)(b)	Pct. of occurrence: 084/PSA 3	Date S.O.L. Expires: 11/22/99
Date reported: 5/26/98	Time reported: 10:57 AM	To whom/where/how reported: Complainant's mother, § 87(2)(b) filed complaint in the 084 precinct. Complaint referred to CCRB by Captain Peterson		
Complainant: § 87(2)(b)		Home address: § 87(2)(b)		
Victim(s): same as above		Home address: same as above		
Witness(es): § 87(2)(b)		Home address: § 87(2)(b)		
Subject officer(s) (include rank): PO Deodat Urprasad		Shield: 9947	Tax: 914030	Command: PSA 3
Witness officer(s) (include rank): PO Kelly Brown		Shield: 2502	Tax: 919910	Command: PSA 3
Allegation(s) by letter: A. PO Urprasad used excessive force when he pushed § 87(2)(b) up against the wall in violation of Patrol Guide procedure 104-01. B. PO Urprasad used excessive force when he choked § 87(2)(b) in violation of Patrol Guide procedure 104-01.				Recommendation(s): § 87(2)(g)

Summary of Complaint

On 5/22/98 at approximately 6:30 PM, § 87(2)(b) black male, was “hanging out” in front of § 87(2)(b) in Brooklyn with some of his friends. His friends included § 87(2)(b). They were all waiting for their friend § 87(2)(b), who resides in apartment § 87(2)(b). They all went upstairs to § 87(2)(b) apartment because they were tired of waiting for him. All of the young men took the elevator to the § 87(2)(b) apartment. One of them knocked on § 87(2)(b) did not recall who, but it wasn’t him) and an officer came out. The officer was a uniformed Asian male, approximately 5’9, medium build, no glasses, with short graying hair in a flat top style haircut. Before the officer came out he could see a uniformed black male standing inside speaking to § 87(2)(b) grandmother. He states that the uniformed black male was of a large build, but could not provide any other description.

The boys were asking the officer who came out where § 87(2)(b) was and what they (the officers) wanted with § 87(2)(b). § 87(2)(b) was not asking, but some of the others were. The officer, later identified by his badge number as PO Urprasad, shield number 9947, told all of them to “go down stairs.” § 87(2)(b) was in front of his friends standing next to PO Urprasad. He told his friends “Come on, let’s go” and as he headed right towards the elevator PO Urprasad grabbed both of his arms above the wrists from the back and pushed § 87(2)(b) against the wall as if to handcuff him, but was never handcuffed at any time. He told PO Urprasad to “get off of him” to which PO Urprasad let go of his arms. He then turned to leave again and PO Urprasad grabbed him around the neck. PO Urprasad had his right hand around the front and the left hand around the back. He was squeezing his neck but he could still talk. PO Urprasad was not saying anything. Some of the boys were grabbing the officer’s arms and yelling at the officer to “let go of him!” He does not recall exactly who was doing this, although he believes it was everyone.

PO Urprasad let go after “about 45 seconds.” He and his friends then walked away from the officer and took stairway “A” downstairs. At no time did the other officer come out of § 87(2)(b) apartment. He and his friends went outside in front of the building again and this time § 87(2)(b) was waiting for them in front of the building. The boys asked him why there were officers in his apartment. § 87(2)(b) did not know. However, § 87(2)(b) knew that the officers were looking for him, but he did not know for what. This time, they saw the officers leave the building and head towards a marked RMP that was parked in front of the building. As PO Urprasad left the building § 87(2)(b) § 87(2)(b) called out to PO Urprasad “hey, you choked me!” PO Urprasad turned to his partner and started laughing.

§ 87(2)(b) returned home at approximately 8:00 PM and told his mother § 87(2)(b) what had happened. § 87(2)(b) and § 87(2)(b) went to the 084 precinct and filed a Civilian Complaint. § 87(2)(b) did not seek treatment for any injuries nor were pictures ever taken of such, although he states he sustained contusions to his neck.

Results of Investigation

Several attempts were made to get in touch with the witnesses § 87(2)(b) had listed in his initial interview. All of the witnesses were between the ages of § 87(2)(b) and therefore, contact letters were sent to the parents of § 87(2)(b) witnesses. Contact letters were sent on both 6/23/98 and 7/7/98 to the parents of § 87(2)(b). Investigator received no response from any of the letters. Investigator also looked up names and apartment listings in both the Brooklyn Telephone book as well as the Brooklyn Cole's directory, to which there were no listings found for any of the stated names or addresses. Finally, on 7/17/98, Investigator conducted a field visit to § 87(2)(b) with the intention of establishing contact with some if not all of the witnesses listed above. Field letters were left for all of the above individuals since both parents and children were not available. Investigator did speak to the individuals in § 87(2)(b) in regards to why the officers had visited their residence, and was told by § 87(2)(b) that his grandmother had "called the police on him because he had a gun in the house." § 87(2)(b) told Investigator that he had seen what happened between the officer and § 87(2)(b) stating that the officer had grabbed the back of § 87(2)(b) shirt. However, § 87(2)(b) did state that he never saw the officer choke § 87(2)(b) at any time. Investigator did not receive any response from any of the witnesses to date.

PO Deodat Urprasad and PO Kelly Brown both stated they were working a 1500 x 2335 tour of duty out of Police Housing Authority (PSA) number 3. Both officers were in uniform. PO Brown had an entry in his memobook in regards to the above incident while PO Urprasad did not. PO Urprasad stated in his initial interview that he had had two different partners that day, his regular partner PO Desio and another officer named Brown. Investigator found after scheduling both PO Desio and Sergeant Brown that neither were present for the above incident, and that it was PO Kelly Brown who was present.

Both officers state that at approximately 5:30 PM, they received a radio run of a 10-52, a domestic dispute, at § 87(2)(b). At approximately 5:50 PM, the incident was recorded in PO Brown's memobook as a 10-90F1: that a Domestic Incident Report was taken but no offense was alleged. Both officers responded to § 87(2)(b) and were greeted at the door by an elderly woman, who stated that she has been having problems controlling her grandson and he refused to listen to her. She told them there had not been any physical confrontations or anything like that, she just wanted a report taken and the officers to speak to her grandson. However, her grandson was not there at the time and had left when the grandmother had called the police. PO Brown conducted an interview and took the report. While he was doing this there was a knock at the door and the elderly woman asked PO Urprasad to answer the door. When PO Urprasad answered the door there was "a couple of kids at the door" who asked for the woman's grandson. PO Urprasad told the boys that the person (the grandson) was not home. This happened a couple of times, and PO Urprasad told them each time that the grandson was not there and to go downstairs. PO Urprasad never left the apartment at any time and basically stayed in the doorway when speaking to the group of children.

Both officers state that at no time upon leaving did any of the children who were outside state anything about PO Urprasad choking them, nor did any of the children speak to them. PO Brown also stated that at no time did PO Urprasad state anything about touching any of the children for any reason.

Conclusions and Recommendations

PO Urprasad used excessive force when he pushed § 87(2)(b) up against the wall in violation of Patrol Guide procedure 104-01 (allegation A), and when he choked § 87(2)(b) (allegation B) in violation of Patrol Guide procedure 104-01. § 87(2)(g)

§ 87(2)(g)

Investigator:

H. McEnany

Date:

1/5/99

Supervisor:

[Signature]

Date:

1/5/99

Reviewed by:

Barbara

Date:

1/5/99

Reviewed by:

Date: